

Power for you!

The Treaties of the European Union



Kofinanziert von der
Europäischen Union

Agenda

1. Quiz
2. Input 1: The EU Treaties (Introduction)
3. Action Game: Power for you!
4. Input 2: The EU Treaties (Advanced)
5. Discussion

Quiz:
Treaty or Fiction?

“Turmoil has engulfed the Galactic Republic. The taxation of trade routes to outlying star systems is in dispute.”

FICTION!

STAR WARS MOVIE: EPISODE I – THE PHANTOM MENACE



Sources:

https://www.starwars.com/video/star-wars-episode-i-the-phantom-menace-opening-crawl?utm_source=chatgpt.com, Clinker-Free-Vector-Images from Pixabay

“The peoples of Europe, in creating an ever closer union among them, are resolved to share a peaceful future based on common values.”

TREATY!

CHARTER OF FUNDAMENTAL RIGHTS OF THE EUROPEAN UNION



Image by OpenClipart-Vectors from Pixabay

„You are responsible, for the rest of your life, for what you have tamed.“*

FICTION!

LE PETIT PRINCE, ANTOINE DE SAINT-EXUPÉRY

*Translated from the original German text.



Image by John from Pixabay

„Pursuant to the principle of sincere cooperation, the Union and the Member States shall, in full mutual respect, assist each other in carrying out tasks which flow from the Treaties.”

TREATY!

TREATY ON EUROPEAN UNION



Image by OpenClipart-Vectors from Pixabay

„The arts and scientific research shall be free of constraint. Academic freedom shall be respected.“

TREATY!

CHARTER OF FUNDAMENTAL RIGHTS OF THE EUROPEAN UNION



Image by OpenClipart-Vectors from Pixabay

“What a celebration (...) to leave behind a life of war and enter one of peace, to blend peoples, languages, and cultures from every region of the continent, and to create a cohesive, united society...”*

FICTION!

IRON FLAME, REBECCA YARROS

*Translated from the original German text.



Image by MythologyArt from Pixabay

„It places the individual at the heart of its activities, by (...) creating an area of freedom, security and justice.“

TREATY!

CHARTER OF FUNDAMENTAL RIGHTS OF THE EUROPEAN UNION



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„Fear leads to anger. Anger leads to hate. Hate leads to suffering.”

FICTION!

YODA IN STAR WARS MOVIE: EPISODE I – THE PHANTOM MENACE



Image by Agung Setiawan from Pixabay

“The Union and its Member States shall act jointly in a spirit of solidarity...”

TREATY!

TREATY ON THE FUNCTIONING OF THE EUROPEAN UNION



Image by OpenClipart-Vectors from Pixabay

„The invisible hand of the market steers human activity and prosperity. And at the beginning stands money. “

FIKTION!

PLANTOPIA, THERESA HANNIG

*Translated from the original German text.



Image by Barta IV from Pixabay

„.. the Union is founded on the indivisible,
universal values of human dignity, freedom,
equality and solidarity”

TREATY!

CHARTER OF FUNDAMENTAL RIGHTS OF THE EUROPEAN UNION



Image by OpenClipart-Vectors from Pixabay

The Treaties of the European Union

A Review

- ▶ **1951 | Treaty of Paris**/Treaty establishing the European Coal and Steel Community
- ▶ **1957 | Treaties of Rome**/Treaties establishing the European Economic Community (EEC)
- ▶ **1985 | Schengen Agreement**: Regulates the free movement of persons within the EU
- ▶ **1992 | Maastricht Treaty**/Treaty on European Union: Founding treaty of the EU
- ▶ **1997 | Treaty of Amsterdam**: More rights for citizens & strengthening of domestic policy
- ▶ **2001 | Treaty of Nice**: Basis for enlargement to include Eastern European countries
- ▶ **2007 (in force since 2009) | Treaty of Lisbon**: Makes the EU more democratic, transparent, and effective

The Treaties of the European Union

Forms of Application

- ▶ **Primary law** in the context of the European Union: the EU's supreme law. It comprises the founding treaties on which the EU is based.
- ▶ **Secondary law**: All other EU law (laws, directives, regulations). This must comply with primary law and may not contradict it.

The Treaties of the European Union

Primary law

- ▶ **TFEU** (Treaty on the Functioning of the European Union): In force since 1957 (Treaties of Rome). Current version: Treaty of Lisbon (2009)
 - Covers: the internal market, agriculture, the environment, consumer protection, competition, and economic and monetary policy
 - A “day-to-day treaty” containing concrete policy rules
- ▶ **TEU** (Treaty on European Union): In force since 1993 (Treaty of Maastricht). Current version: Treaty of Lisbon (2009)
 - Covers: the EU’s fundamental values, competences, institutions, and key principles
 - The EU’s “constitutional framework”
- ▶ **Charter of Fundamental Rights of the EU**: Legally binding since the Treaty of Lisbon
 - Sets forth the fundamental rights of individuals within the EU.

Game: Power for you!

- ▶ Fields of knowledge
- ▶ Gift fields
- ▶ Fields of action

The Treaties of the European Union: *Key Principles*

- **Principle of limited conferral:**

Every European law requires a basis in the European Treaties. The EU may only act in areas for which the Member States have expressly conferred competence upon it. The EU may not regulate anything for which there is no treaty basis for authorization. (Article 5(1) TEU)

- **Principle of subsidiarity:**

The EU may only act if the objectives cannot be sufficiently achieved by the Member States or if, because of their scale or effects, they can be better achieved at EU level. (Article 5(3) TEU)

Responsibilities of the EU

Exclusive Responsibilities

Only the EU may act



Customs Union



Internal Market
Competition



Monetary Policy (*Eurozone*)



Fisheries Policy



Common Commercial Policy

Shared Responsibilities

EU & Member States



Internal Market



Social Policy



Environment



Energy Policy



Consumer Protection



Transport



Research & Space

Supporting Responsibilities

The EU supports national actions



Health



Education & Culture



Tourism



Civil Protection

The treaties of the European Union

Coordination of laws

- **Qualified majority:** In most EU legislative procedures, a qualified majority is sufficient.

This is achieved when 55% of the member states (at least 15 countries) agree AND these states represent at least 65% of the EU population.

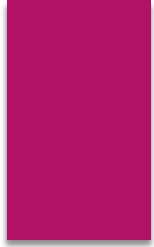
- **Unanimity:** Laws in particularly sensitive policy areas require unanimity, e.g.:

- Tax policy
- Accession of new EU member states
 - Common Foreign and Security Policy (CFSP), including the Common Security and Defence Policy (CSDP);
 - EU budget
 - Treaty amendments

- **Simple majority:** predominantly used for procedural decisions, regulated in Article 238 TFEU.

Discussion

Can you think of an example from your life where EU law has enriched you?



Thank you!

Mehr wissen: Europa | Projekttag | 21.04.2026



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